

PACIFIC HAVEN PROPERTIES: MASTER COMMUNITY COVENANT AND RESIDENT HANDBOOK

Version: 2025.1-Global **Total Pages:** [XX] **Applicability:** All Residential Units in CA, WA, OR

PREAMBLE AND DEFINITIONS

WHEREAS, Pacific Haven Properties ("Management," "Landlord," or "Owner") is the fee simple owner or managing agent of the residential communities listed in Schedule A; and **WHEREAS**, the individual(s) listed on the Lease Agreement ("Resident," "Tenant," or "Occupant") desire to occupy a dwelling unit within said communities; **NOW, THEREFORE**, in consideration of the mutual promises contained herein, the parties agree to the following Rules, Regulations, and Covenants.

1.1 Definitions

- **"Common Areas"** shall refer to all areas outside of the individual dwelling unit, including but not limited to: hallways, lobbies, rooftops, pools, gyms, parking garages, elevators, and mailrooms.
- **"Quiet Enjoyment"** refers to the right of a resident to the undisturbed use and enjoyment of the property, subject to the constraints of community living.
- **"Emergency"** is defined as any situation posing an immediate threat to life, safety, or the structural integrity of the property (e.g., fire, flood, gas leak).
- **"Guest"** shall refer to any individual who is not a signatory to the Lease Agreement but is present on the property with the express or implied consent of a resident. Residents are responsible for the conduct and actions of their Guests at all times.
- **"Vehicle"** is defined as any motorized or non-motorized means of transportation, including but not limited to: automobiles, motorcycles, motorized scooters, bicycles, and trailers. This term applies only to those vehicles currently registered and in operable condition.
- **"Service Animal"** refers to any dog or miniature horse that is individually trained to do work or perform tasks for the benefit of an individual with a disability, in accordance with the Americans with Disabilities Act (ADA). This definition is distinct from "Pets" or "Emotional Support Animals."

- **"Rent"** shall refer to the total monthly financial obligation due from the resident to the property management, including the base lease rate and any recurring monthly surcharges (e.g., parking fees, pet rent) as outlined in the Lease Agreement.
- **"Utility"** is defined as any essential service provided to the dwelling unit or common areas, including but not limited to: electricity, natural gas, water, sewer, trash collection, and internet/cable telecommunications.
- **"Hazardous Material"** shall refer to any substance, waste, or material that is flammable, explosive, corrosive, radioactive, or otherwise toxic, the presence of which poses a risk to the health of residents or the safety of the physical structure.
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ARTICLE 1: CONDUCT AND USE OF PREMISES

1.1 Noise and Disturbances Residents shall not make or permit any disturbing noises in the building by themselves, their family, friends, or guests; nor do or permit anything by such persons that will interfere with the rights, comforts, or conveniences of other residents.

- **A. Quiet Hours:** Quiet hours are strictly enforced.
 - **Standard:** 10:00 PM to 7:00 AM daily.
 - **Weekends:** 11:00 PM to 8:00 AM (Friday/Saturday nights).
- **B. Amplified Sound:** Television, radio, and musical instrument volume must be kept at a level where it cannot be heard in the adjacent corridors or units.
- **C. Construction:** Remodeling approved by management may only occur between 9:00 AM and 5:00 PM, M-F.

1.2 Smoking Policy (Zero Tolerance) All Pacific Haven Properties are **100% Smoke-Free**. This includes cigarettes, cigars, marijuana, and electronic delivery systems (vaping). Smoking is prohibited in:

- Individual Units
- Balconies/Patios
- Parking Garages
- Within 25 feet of any building entrance.
- *Violation Fee:* First offense is \$250. Second offense is grounds for eviction.

1.3 Occupancy and Guests

- **A. Guest Limits:** Residents may have no more than two (2) guests per occupant in Common Areas unless a private event space has been reserved.
- **B. Extended Stays:** Any guest staying longer than **seven (7) consecutive nights** or **fourteen (14) nights in a rolling 12-month period** must be registered with the leasing

office and undergo a background check. Failure to register constitutes an unauthorized occupant violation.

ARTICLE 2: AMENITIES AND FACILITIES

2.1 Swimming Pool and Spa

- **Hours:** 6:00 AM – 10:00 PM daily.
- **Safety:** No lifeguard is on duty. Swim at your own risk.
- **Glassware:** STRICTLY PROHIBITED. Only plastic or metal containers are allowed. A fine of **\$500** will be assessed if broken glass requires the pool to be drained.
- **Hygiene:** Proper swim attire is required. Cut-offs and street clothes are prohibited.

2.2 Fitness Center

- **Hours:** 24/7 Access with Key Fob.
- **Equipment:** Users must wipe down equipment with provided sanitary wipes after use.
- **Personal Trainers:** External personal trainers are not permitted to operate commercial businesses within the facility without insurance verification on file with Management.

2.3 Rooftop Terraces

- **Occupancy:** Capacity is limited to 50 persons per fire code.
 - **Grills:** Gas grills are available first-come, first-served. Users must clean the grill grate after use.
 - **Music:** No amplified music is allowed on the rooftop after 10:00 PM.
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ARTICLE 3: MAINTENANCE AND REQUESTS

3.1 Reporting Protocol

- **Routine Maintenance:** All non-emergency requests (e.g., dripping faucet, stuck drawer) must be submitted via the **Tenant Portal**.
- **Response Time:** Management aims to address routine tickets within 48-72 hours.
- **Emergency Maintenance:** For fire, flood, gas leaks, or total loss of power/heat, call the **24/7 Hotline** immediately. Do not use the portal.

3.2 Mold and Mildew Prevention To prevent mold growth, Resident agrees to:

- Use exhaust fans when showering or cooking.
- Keep the unit temperature between 60°F and 80°F.

- Immediately report any water intrusion or visible mold.
- **Liability:** Resident is liable for mold remediation costs if caused by failure to ventilate (e.g., disconnecting fans).

3.3 Plumbing and Drains

- **Prohibited Items:** Do not flush wipes (even "flushable" ones), feminine hygiene products, grease, or cat litter.
 - **Cost of Repair:** Resident pays for drain clearing if the blockage is caused by resident negligence.
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ARTICLE 4: VEHICLES AND PARKING

4.1 Registration All vehicles parked on the premises must be registered with Management. Unregistered vehicles are subject to immediate towing at the owner's expense.

4.2 Electric Vehicle (EV) Charging

- **Usage:** EV spots are for active charging only.
- **Idle Fees:** A fee of \$0.25 per minute applies if the vehicle remains connected more than 30 minutes after charging is complete.
- **Liability:** Management is not responsible for damage to vehicles caused by power surges or equipment failure.

4.3 Speed Limit The speed limit in the garage is 5 MPH. Headlights must be on at all times.

4.4 Oil Leaks Vehicles leaking oil or fluids must be removed immediately. Resident is responsible for the cost of pressure washing the concrete.

ARTICLE 5: STATE-SPECIFIC ADDENDUMS

Please note that these state specific clauses override Articles 1-4 for a specific state

5.A CALIFORNIA ADDENDUM (Applies to SF, LA, SD Properties)

5.A.1 Proposition 65 Warning WARNING: This property contains chemicals known to the State of California to cause cancer and birth defects or other reproductive harm, including tobacco smoke, carbon monoxide, and lead.

5.A.2 Rent Control & Just Cause For properties subject to AB 1482:

- Rent increases are capped at 5% + CPI (Consumer Price Index), not to exceed 10% annually.
- Landlord must provide "Just Cause" for lease termination after 12 months of occupancy.

5.A.3 Pet Restrictions (CA Specific)

- **Weight Limit:** Due to seismic retrofitting and sound transmission classifications in our CA buildings, pets over **45 lbs** are restricted to ground-floor units only.
- **Prohibited Breeds:** Pit Bulls, Rottweilers, Dobermans.

5.B WASHINGTON ADDENDUM (Applies to Seattle, Bellevue)

5.B.1 Recycling & Composting (Seattle Municipal Code)

- Residents are legally required to separate food scraps (compost) from garbage.
- **Green Bins:** Located in the trash room. Plastic bags are NOT allowed in Green Bins.
- **Pizza Boxes:** Greasy pizza boxes must be composted, not recycled.

5.B.2 Washington Pet Policy Exceptions

- **The "Husky" Rule:** While large aggressive breeds are generally restricted, **Siberian Huskies and Alaskan Malamutes are PERMITTED** in all Washington State properties, honoring the local culture. They must pass a behavioral assessment.
- **Pet Rent:** \$35/month.

5.B.3 Security Deposit

- Deposits are held in a trust account in accordance with WA RLTA.
- Move-in checklists must be returned within 14 days of occupancy.

5.C OREGON ADDENDUM (Applies to Portland, Eugene)

5.C.1 Bicycle Storage

- Bicycles are strictly prohibited in elevators and hallways to prevent wall damage.
- **Storage Rooms:** Secure bike storage is available for a one-time key fee of \$25.
- **Liability:** Management is not liable for theft of bicycles from the storage room; residents should use U-Locks.

5.C.2 Rent Cap (SB 608)

- Rent may not be increased during the first year of tenancy.
 - Increases require a 90-day written notice.
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ARTICLE 6: LEGAL BOILERPLATE (EXPANSION PACK)

6.1 Indemnification Resident agrees to indemnify, defend, and hold harmless the Landlord, its agents, employees, and affiliates from and against any and all claims, actions, suits, judgments, damages, costs, and expenses (including reasonable attorney fees) arising out of or resulting from: (a) any personal injury, death, or property damage occurring in or about the Premises or the Property caused by the negligence or willful misconduct of Resident or Resident's guests; (b) any breach or default by Resident of their obligations under this Agreement.

6.2 Force Majeure If Landlord is unable to perform any of its obligations under this Agreement due to events beyond its reasonable control, including but not limited to acts of God, war, terrorism, pandemics, strikes, utility failures, or government orders, the time for performance shall be extended for the duration of the delay.

6.3 Severability If any provision of this Agreement is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, the validity, legality, and enforceability of the remaining provisions shall not in any way be affected or impaired thereby.

6.4 Waiver The failure of Management to enforce any provision of these Rules at any time shall not be deemed a waiver of the right to enforce such provision or any other provision at a later time. Acceptance of rent with knowledge of a default does not waive the default.

6.5 Joint and Several Liability If more than one person executes the Lease, the obligations and liabilities of such persons under this Agreement shall be joint and several. This means each Resident is individually responsible for the entire Rent and the full performance of all terms of the Lease.

(Continue adding standard contract clauses: Subordination, Eminent Domain, Notices, Governing Law, Entire Agreement...)

APPENDIX A: FINE SCHEDULE

- **Late Rent:** 5% of monthly rent (or as restricted by state law).
- **Lockout (Office Hours):** \$50.
- **Lockout (After Hours):** \$150.
- **Lost Key Fob:** \$75 replacement fee.
- **Trash Violation (Leaving trash in hallway):** \$50 per bag.
- **Unauthorized Pet:** \$500 initial fine + \$50/day.
- **Smoking Violation:** \$250.
- **Noise Violation:** \$100 (1st notice), \$200 (2nd notice).

